

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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MANUEL CRESPO,

Plaintiff,

FIRST AMENDED COMPLAINT
12 CV 1406 (WHP)(AJP)

- against -

THE CITY OF NEW YORK, JEANBERN REMY,
EARL LYNCH, and JOHN DOE, the name being
fictitious and presently unknown, employees of
the New York City Police Department,

Defendants.

Jury Trial Demanded

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Manuel Crespo, by his attorney, Matthew Flamm, alleges the following
upon information and belief as his First Amended Complaint:

Nature of the Action

1. This civil rights action arises from Defendants' June 25, 2011 arrest
of Manuel Crespo and the resulting strip search and attempted prosecution.
Plaintiff seeks compensatory and punitive damages for violation of his civil rights
under 42 U.S.C. §1983.

Jurisdiction and Venue

2. This action arises under the United States Constitution and 42
U.S.C. §1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C.
§1331 and §1343(3). Plaintiff asserts jurisdiction over the City of New York under
28 U.S.C. §1367. Plaintiff requests that this Court exercise pendent jurisdiction
over those state law claims arising out of the same common nucleus of operative
facts as do Plaintiff's federal claims.

3. Under 28 U.S.C. §1391(b) and ©, venue is proper in the Southern District of New York because defendant City of New York resides in that judicial District.

Parties

4. Plaintiff Manuel Crespo is a citizen of the United States of America residing in the State and City of New York, County of Kings. He is an Hispanic-American and resides at 681 Ocean Avenue in Brooklyn, New York. Mr. Crespo is married for more than a decade and works at Beth Israel Hospital performing hospital transport.

5. Defendant CITY OF NEW YORK is a Municipal Corporation within New York State. Pursuant to §431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

6. Defendants JEANBERN REMY and EARL LYNCH were, at all times relevant, duly appointed and acting police officers employed by the New York City Police Department and assigned to the NYPD's Brooklyn North Narcotics Unit in Brooklyn, New York. They are liable for directly participating in the events underlying this suit and for not intervening to prevent or end the misconduct to which Plaintiff was subjected.

7. Defendant JOHN DOE was, at all times relevant, a duly appointed and acting police officer employed by the New York City Police Department and assigned to the 77th Precinct in Brooklyn, New York. He is liable for participating in Plaintiff's strip search.

8. At all times relevant, defendants REMY, LYNCH and DOE (collectively, "the individual Defendants") were acting under color of state law.

9. The individual Defendants involved in the incidents underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by Defendant City of New York.

Notice of Claim

10. On or about July 29, 2011, and within ninety days after claims arose, Plaintiff filed a Notice of Claim upon Defendant the City of New York, by delivering copies thereof to the person designated by law as a person to whom such claims may be served.

11. The Notice of Claim was in writing and was sworn to by the Plaintiff, and contained the name and a post office address of the Plaintiff.

12. The Notice of Claim set out the nature of the claims, the time when, the place where and manner by which claims arose, and the damage and injuries claimed to have been sustained.

13. The City of New York has neglected and failed to adjust the claims within the statutory time period.

14. This action was commenced within one year and ninety days after the happening of the events upon which the claims are based.

Facts Underlying Plaintiff's Claims for Relief

15. On June 25, 2011 at and around 8:30 a.m. on Bergen Street between Clarkson and Franklin Avenues in Brooklyn, Plaintiff was accosted and arrested or caused to be arrested by Defendants REMY and LYNCH, who were among a

group of officers. Those two Defendants thereafter caused Plaintiff to be subjected to an illegal strip search and offered or allowed to be offered false evidence in pursuit of a criminal prosecution against Plaintiff.

16. Plaintiff had, in fact, been doing nothing unlawful and was simply walking with his brother and conversing with acquaintances.

17. After Defendants REMY and LYNCH stopped and arrested Plaintiff, Mr. Crespo was eventually taken, along with others who had been arrested, to the 77th Precinct Stationhouse.

18. JOHN DOE and others conducted the strip-search of Plaintiff and other people who had been arrested. The unlawful search of Plaintiff uncovered no contraband, drugs, drug paraphernalia or, indeed, any evidence of any wrongdoing much less of criminal activity.

19. Plaintiff while in custody, was needlessly taken to Woodhull Hospital and Bellevue Hospital.

20. One or more of the individual Defendants and other New York City Police personnel conferred and decided to attempt to criminally charge Mr. Crespo, and one or more of the individual Defendants provided false sworn statements in support of the prosecution.

21. Mr. Crespo was released on June 26, 2011 in the very early morning, without being arraigned or seeing a Judge, after the District Attorney declined to prosecute Plaintiff on whatever false allegations the officers had alleged.

22. The individual Defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the unlawful arrest, strip-search and attempted prosecution of Mr. Crespo.

23. Defendants' acts and omissions caused Mr. Crespo to suffer mental and emotional upset and humiliation, and deprivation of his constitutional rights, among other injuries. Plaintiff suffered a loss of dignity in being publicly accosted and arrested and suffered humiliation and emotional upset in being subjected to a strip-search.

24. The individual Defendants, at all times relevant, and in arresting and imprisoning Plaintiff, offering false evidence to the District Attorney in an effort to criminally prosecute Plaintiff, and subjecting Mr. Crespo to an humiliating strip-search, acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical and mental well-being.

FIRST CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

25. Plaintiff repeats the allegations of paragraphs 1-24 as though fully stated herein.

26. By the actions described above, Defendants REMY and LYNCH deprived Mr. Crespo of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

27. As a consequence thereof, Manuel Crespo has been injured.

SECOND CLAIM FOR RELIEF FOR FALSE IMPRISONMENT

28. Plaintiff repeats the allegations of paragraphs 1-24 as though fully stated herein.

29. By reason of the foregoing, Plaintiff was intentionally detained and confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely arrested and imprisoned.

30. As a consequence thereof, Manuel Crespo has been injured.

THIRD CLAIM FOR RELIEF FOR ASSAULT

31. Plaintiff repeats the allegations of paragraphs 1-24 as though fully stated herein.

32. By the actions described above, Plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

33. As a consequence thereof, Manuel Crespo has been injured.

FOURTH CLAIM FOR RELIEF FOR BATTERY

34. Plaintiff repeats the allegations of paragraphs 1-24 as though fully stated herein.

35. By the actions described above, Plaintiff was intentionally touched in a harmful and offensive manner.

36. As a consequence thereof, Manuel Crespo has been injured.

FIFTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

37. Plaintiff repeats the allegations of paragraphs 1-24 as though fully stated herein.

38. The individual Defendants, and each of them, failed to intervene to prevent, end, or truthfully report the unlawful conduct to which Mr. Crespo was subjected, despite having a reasonable opportunity to do so.

39. As a consequence thereof, Manuel Crespo has been injured.

SIXTH CLAIM FOR RELIEF FOR NEGLIGENCE

40. Plaintiff repeats the allegations of paragraphs 1-24 as though fully stated herein.

41. The acts complained of herein resulted from Defendant City of New York, through its agents, servants and employees, breaching its duty properly to instruct, supervise, monitor and control its Police Officers, including instructing, supervising, monitoring and controlling the individual Defendants herein.

42. Defendant City's inadequate training, supervision, monitoring and control directly resulted in the illegal stop, seizure, false arrest, strip search and attempted false prosecution of Manuel Crespo and others.

43. As a consequence thereof, Manuel Crespo has been injured.

Request for Relief

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

- (A) that Plaintiff's right to be free from unreasonable searches and seizures under the Fourth and Fourteenth Amendments of the United States Constitution was violated;

- (B) Compensatory damages in an amount to be fixed at trial;
- (C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages from the individual Defendants in an amount to be fixed at trial;
- (D) An award to Plaintiff of the costs and disbursements herein;
- (E) An award of attorney's fees under 42 U.S.C. §1988; and
- (F) Such other and further relief as this Court may deem just and proper.

Dated: June 13, 2012
Brooklyn, New York



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